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File No: EXP202213792

Sanctioning Procedure PS/00483/2023.

## RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On December 29, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate a sanctioning procedure against BURGOS CLUB DE FÚTBOL, S.A.D. (hereinafter, the accused party), through the Agreement that is transcribed:

File No: EXP202213792.

Sanctioning Procedure No: PS/00483/2023.

### AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following:

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## FACTS

### FIRST:

On November 4 and 7, 2022, a complaint and claim regarding the implementation of systems were received by this Spanish Agency for Data Protection.

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biometric access control to the fan stands of the BURGOS CLUB DE FÚTBOL, S.A.D. with NIF A09012428 (hereinafter, “the club”/BURGOS CF).

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Firstly, a complaint was received on November 4, 2022, stating that the State Commission against violence, racism, xenophobia, and intolerance in sports adopted an agreement whereby access to the fan stands of football stadiums should be conducted through biometric control. Consequently, some football teams are already adopting these forms of access for their stands, such as BURGOS CF. The complainant considers that the aforementioned treatment is excessive. In this regard, it indicates that the same controls can be carried out by requesting nominal season tickets and, if necessary for security reasons, by requesting the presentation of the National Identity Document.

The complainant does not attach any documentation to their submission.

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Subsequently, a claim was received on November 7 of the same year stating that BURGOS CF is mandatorily requiring the use of fingerprint recognition to access the fan stand of the football field. It literally states the following: “When you become a member of the fan stand, at no time do you sign anything regarding data protection, nor are you informed that biometric data may be requested for access to the field. So far, the system for accessing the field is: first, they ask for your ID and MEMBERSHIP CARD to verify that you are the season ticket holder, and then you pass through a turnstile where you must insert your membership card and you are registered. Therefore, the justification that it is for security is unfounded, as there is a less invasive means. It is discriminatory that only one stand is being required to implement this access control measure, as none of the season ticket holders from other stands are imposed this requirement, nor are those who access occasionally with a ticket. If they claim security, where is the security in the rest of the field?”

The claimant attaches the official statement published on November 4, 2002, on the website [burgoscf.es](http://burgoscf.es) regarding “Official Statement | Biometric Access in the Fan Stand by BURGOS CF,” which states the following:

“The Burgos Club de Fútbol, in compliance with Law 19/2007, of July 11, Royal Decree 203/2010, of February 26, and Book XII of the General Regulations of LaLiga, after an audit conducted by LaLiga, and following the agreement adopted by the State Commission against violence, racism, xenophobia, and intolerance in sports, announces that access to its fan stand must be conducted through biometric control.

In this regard, all LaLiga clubs, including Burgos CF, have been warned that non-compliance with this regulation will result in action by the commission through the corresponding proposals for the opening of sanctioning files under current legislation. In this way, LaLiga has installed a fingerprint detection

program so that all season ticket holders in this area of the stadium must go to the club offices to set their fingerprint and thus access the Estadio de El Plantío using this method. (...) This movement is only a first step, as the Burgos entity aims and commits to implementing this biometric access mechanism.

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for the entire stadium within an estimated period of two seasons. In fact, following the course of action of other reference clubs in Spanish football, the entity intends to develop facial recognition processes, in favor of speed and accessibility, when these systems are more developed.” None of the complainants provide evidence that their biometric data has been collected.

SECOND:

In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on December 1, 2022, the aforementioned complaint was forwarded to BURGOS CF for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on December 2, 2022, as evidenced by the acknowledgment of receipt in the file. However, BURGOS CF did not respond to this initial transfer.

THIRD:

On January 2, 2023, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigation proceedings referred to in Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD) to analyze the implications that the practical application of the aforementioned biometric system in football stadiums, one of which was BURGOS CF, could have in terms of personal data protection.

FOURTH:

On February 3, 2023, in accordance with Article 65 of the LOPDGDD, the complaint and claim were admitted for processing and acknowledged.

FIFTH:

Following the instructions of the agreement of the Director of the AEPD, the General Subdirectorate for Data Inspection initiated preliminary investigation proceedings (AI/00444/2022) to clarify the facts contained in the complaint of November 4 and in the claim of November 7, 2022. All this, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD.

5.1. Involved parties and documents that are part of the file.

To clarify the facts, it was necessary to make various requests for information and documentation addressed to all those entities that participated in the implementation of the biometric system in first and second division football stadiums at the state level, specifically in the Plantío stadium of BURGOS CF, such as:

- HIGHER SPORTS COUNCIL (hereinafter, CSD).
- STATE COMMISSION AGAINST VIOLENCE, RACISM, XENOPHOBIA, AND INTOLERANCE IN SPORT (hereinafter, CEVRXID).
- NATIONAL PROFESSIONAL FOOTBALL LEAGUE (hereinafter, LALIGA)
- SPANISH PROFESSIONAL FOOTBALL SOCIETY, S.A.U (hereinafter, SEFPSA)
- BURGOS CF.

On September 22, 2023, a report on preliminary investigation proceedings was issued, according to which the following documents and actions carried out were made known and added to the file:

- Those carried out before the initiation of the preliminary proceedings, with the complaint and claim

and documents that have already been mentioned in the first to fourth backgrounds of this agreement.

- Regarding BURGOS CF, three requests were made that proceeded as follows:

1. On February 16, 2023, a request was made for the first time to BURGOS CF, which was notified electronically and by post. BURGOS CF responded on March 16, 2023 (hereinafter, EscritoBurgos1).
2. On July 6, 2023, the request to BURGOS CF was reiterated, to which it responded with a document dated July 27, 2023 (hereinafter, EscritoBurgos2).
3. On August 22, 2023, BURGOS CF was requested to provide certain additional documentation, and it responded with a document dated September 4, 2023 (hereinafter, EscritoBurgos3).

- Regarding LALIGA, two requests for information were made. The first on February 17, 2023, was answered on March 10, 2023 (EscritoLaliga1). The second was made on July 6, 2023, requesting LALIGA an extension of the deadline, which was granted on July 13, 2023. Finally, LALIGA submitted allegations in response to the same on July 27, 2023 (EscritoLaliga2).

- Regarding the CSD, a first request was made on February 23, 2023, and a second on July 6, 2023. In response to these, the CSD submitted three documents dated March 28, 2023 (EscritoCSD1), July 21, 2023 (EscritoCSD2), and July 24, 2023 (EscritoCSD3). A second request was made on July 6, 2023, to which it responded on July 21, 2023.

- Finally, on August 22, 2023, information was requested from SEFPSA, reiterated on September 4, 2023, which received a response on September 15, 2023 (EscritoSEFPSA1).

5.2. On the origin and current situation of the implementation of biometric systems in first and second division football stadiums.

In accordance with the information gathered, and before analyzing the specific case of BURGOS CF, a brief reference must be made to the actions (chronologically...

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ordered) carried out by the inspector in order to clarify what was the origin and what is the current status of the implementation of biometric systems for fingerprint or facial recognition that was generally carried out to access the football stadiums of the first and second division clubs of LALIGA.

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On September 23, 2015, the CSD authorized the new version of Book XII of the League Regulations (hereinafter, RGLALIGA), which is currently in force, whose Article XII establishes the following in its sections 2, 3, and 4:

“2. The sale of season or half-season access tickets or documents, regardless of their designation, in the stands of encouragement with the characteristics described in section 1, will require that the fan provides, along with the data specified in Article 1 of this Regulation, the biometric data that is determined, and the consent of the interested party must be obtained by clearly informing them of the specific purposes for the processing of the aforementioned personal data, in accordance with the current regulations on personal data protection. At the time of the acquisition of the access title by the affiliated Club/SAD, the fan will be associated with the provided affiliation and the biometric data.

3. THE ACCESS TITLES for season or half-season in the stands of encouragement will be personal and non-transferable, regardless of the policy that the Club/SAD has regarding these for the rest of the venue. To this end, the Club/SAD will establish, both in the document for acquiring the access title and in the corresponding internal regulation, that in these areas, spectators will be subject to all identity verification controls in force at any given time, including those related to automatic biometric systems, as well as the exhibition of the access title along with the document proving their identity.

4. Access to the stands of encouragement will only be allowed to fans who have obtained the access title to that area and who, at the time of entry, submit to the reading of their biometric data. Access will be denied if the person does not provide, if required, along with the biometric data, a document proving their identity that matches the affiliation associated with the biometric data and the access title.”

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There is no record that LALIGA had adopted measures aimed at enforcing the obligations set forth in the aforementioned article of the RGLALIGA until CEVRXID urged it to do so. Specifically, it is documented that CEVRXID urged LALIGA on two occasions to promote the implementation by the clubs of the biometric control measures indicated in Book XII of its General Regulations, exclusively for the stands of encouragement in the first and second divisions. In its agreements, it also refers to the

fact that non-compliance will lead to “the corresponding proposals for the opening of sanctioning files in the exercise of its oversight and control function provided for in the Law.”

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The first agreement directed by CEVRXID to LALIGA was on March 15, 2022, and led to the initiation of the implementation of these systems by various clubs, warning them of the possibility of incurring sanctioning liability, which was communicated to them by LALIGA.

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Once its first agreement of March 15, 2022, was issued, CEVRXID, in its meeting on October 20, 2022, agreed to consult the AEPD

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only a matter related to compliance with data protection regulations. Specifically, regarding the legitimizing cause and exception applicable to these referred biometric treatments, they could be carried out under the protection of articles 6.1.e and 9.2.g of the personal data protection regulations, in consideration of the competence attributed to CEVRXID by article 13.1 of Law 19/2007, of July 11, against violence, racism, xenophobia, and intolerance in sports. There was no consultation regarding the necessity and proportionality of the processing of biometric data nor the compliance with the other principles and obligations provided for in the data protection regulations.

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The legal office of the AEPD issued Report 98/2022 on December 22, 2022, in response to the previous consultation (attached by the inspector in the aforementioned diligence). The report is based on several previously reported precedents and maintains that in the present case “there was no legal norm in the Spanish legal system that met the requirements of article 9.2.g) of the GDPR, so the processing could only be based on the consent of the affected parties, provided that it is guaranteed to be free.”

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After receiving the aforementioned report, CEVRXID communicated on March 21, 2023, to LALIGA that “according to the information provided by the AEPD, access to the animation stands through biometric data will be carried out with the consent of the interested party,” so that, “in the event that there is no consent from the interested party to access the animation stands through biometric data, it will be mandatory for the clubs/SAD to have a procedure that allows the identification of all those who access outside of biometric control.”

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Upon receiving the previous communication, LALIGA adopted on March 23, 2023, “Circular No. 19 of the 2022/2023 Season, which conveyed to the clubs what was indicated by the aforementioned Commission, also informing them of the AEPD report of December 22, 2022.” The Circular informs the clubs that “access to the animation stands through biometric data can be maintained but only if there is free consent from the interested party, prior information on the specific purposes for the processing of personal data. In the absence of consent from the interested parties, CEVRXID reminds that spectators in these stands will not be exempt from undergoing all identity verification controls that are in force at any given time and, to that end, it is mandatory for the Club or SAD to have a procedure that allows them to be identified.”

Additionally, in the preliminary proceedings phase, the following information has also been gathered regarding the effective implementation of biometric systems for access control to the stadiums of LALIGA members. In this regard, the following is highlighted:

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LALIGA states that it is aware that 18 of its members have implemented some biometric system for access control to their stadiums, one of which is BURGOS CF. The timing of when they would have been launched varies among them, with the 2015-2016 season being the oldest referred to and the 2022-2023 the most recent. Furthermore, according to

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the information provided by the League, in all cases except one, the implementation of these access controls would have only occurred in the "supporters' stands."

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The League, through the entity SEFPSA, provides members who request it with various devices for the operation of the entry turnstiles to the sports venues, including, where applicable, biometric systems for fingerprint recognition. Clubs are free to contract the fingerprint system from SEFPSA or any other, as long as they have a biometric system for the sale of season tickets and access control to their supporters' stands.

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According to the information provided, SEFPSA states that it has supplied its biometric solution to 15 members of the League, with the system being identical for all, and considers that it neither acts as a data controller nor as a data processor in this context, as its role is limited to supplying the necessary hardware and software without accessing personal data. In this situation, it indicates that it has not conducted risk analyses or impact assessments regarding the processing derived from the use of its supplies.

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Following the receipt of Circular 19 from the League dated March 23, 2023, the clubs that had implemented biometric recognition systems adopted measures aimed either at suspending this access procedure or at maintaining it as voluntary and complementary to others.

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BURGOS CF installed the biometric fingerprint detection system in the supporters' stand, door 15, through three turnstiles, contracting the system developed by SEFPSAU, which appears to correspond to SEFPSA. As of February 15, 2023, prior to receiving Circular 19 from LALIGA, it would choose to maintain fingerprint recognition as a voluntary access system, sending a communication to its members informing them of this, as well as the possibility of requesting the deletion of their biometric data. This was applied starting from the match against Albacete held on February 19, 2023, as recorded in the Minutes provided in EscritoBurgos1.

### 5.3. Facts related to BURGOS CF.

Regarding the specific case of BURGOS CF, to which this sanctioning file refers, it is worth noting, succinctly, the main aspects and documents provided by it thus far during the preliminary investigation phase:

#### 1. Response dated March 16, 2023 (EscritoBurgos1).

In response to the request made on February 16, 10 Annexes are attached, and the following statements are made that need to be highlighted:

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BURGOS CF began to implement the biometric fingerprint system as a mandatory means of accessing the supporters' stand on November 4, 2022, following an audit conducted by LALIGA on July 27, 2022. In proof of this, they claim to attach the audit as Annex 1, but the aforementioned Annex does not correspond to the audit, but rather to the "Technical Report System."

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Access Control Stadium El Plantío prepared by SEFPSAU, with the logo of LALIGA, which appears undated and unsigned.

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Annex II includes the agreement of CEVRXID dated 15/03/22, previously referenced.

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Burgos has provided as Annex V of Document1 the Impact Assessment Related to Data Protection of the system, dated February 16, 2023 (EIPD Report), signed by the entity DATAINFO CONSULTORÍA Y ASESORÍA, S.L. (hereinafter, DATA CONSULTING). It is noted that its completion was considerably later than the start of processing (November 4, 2022). Its content and compliance with the requirements of data protection regulations will be analyzed in detail in the legal grounds of this initiation agreement.

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In response to several questions raised in the first information request, BURGOS CF identifies itself as the data controller for biometric data for access to the El Plantío stadium, informing the following regarding compliance with data protection regulations:

- Source of the data: The data subject provides it themselves.
- Collection procedure: In-person through a fingerprint reader.
- Retention period: Once the season is over.
- Recipients: The 700 members of the supporters' stand, located at gate 15. No transfers are planned, except for possible compliance with legal obligations.
- International transfers: No international transfers are planned except for possible compliance with legal obligations.
- The purpose of biometric processing, according to DocumentBurgos1, was "to meet the requirements established by La Liga and by the Permanent Commission of the State Commission against violence, racism, xenophobia, and intolerance in sport."
- Data retention period: per season, pending a decision from the AEPD on whether to proceed with its retention or destruction. Members are informed of this in Annex VII, and they were given the opportunity to request deletion in the communication of Annex IV.
- Data processors of special category data: none exist.
- Data processors of other data: LALIGA, the Spanish Professional Football Society S.A., and Ligatech S.L.

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BURGOS CF has identified the following relevant dates regarding the processing: November 4, 2022, as the date of commencement of biometric data collection; December 8, 2022, as the date of the first match in which processing was carried out for access control to the supporters' stand; February 15, 2023, as the date of completion of processing (mandatory) for access control to the supporters' stand; and February 19, 2023, as the first match in which only those who voluntarily accessed the stadium with a fingerprint entered, while the rest, about 60, entered with their membership card.

In this regard, Annex III of DocumentBurgos1 includes the 9 minutes signed by the Security Director of BURGOS CF and the Security Coordinator from the Ministry of the Interior regarding the matches held at

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the El Plantío Stadium during the years 2022 and 2023, where the need to carry out biometric controls of the cheering section is noted. Some of these records state that the stadium did not have a biometric identification system for access, notwithstanding that the collection of fingerprints from fans had already been carried out (e.g., records from the following dates: August 14, October 16, October 29, November 27, 2022). In others, it is noted that this control has indeed been used for access.

The termination of the biometric system as a mandatory access system and its continuation as voluntary is evidenced by the communication addressed to its members on February 16, 2023, as Annex IV of the EscritoBurgos1, in which it is informed that, in light of Report 98/2022 from the AEPD, the fingerprint system would be maintained for voluntary use, providing members with a way to request the deletion of the biometric data registered in the system. This is corroborated in the minutes of the match played between Burgos and Albacete on February 19, 2023, which states the following: "The

Security Director HANDS OVER to the security coordinator a copy of a letter addressed to the League in which he requests allegations regarding the ruling 98/22 from the Spanish Data Protection Agency dated January 20, 2023, declaring non-compliance with the current data protection regulations, of which a copy is attached. Therefore, in this match, the club has decided that only those members who have voluntarily agreed to provide such data will enter with a fingerprint, while the rest, about sixty, will simply enter with their membership card.”

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Consequently, BURGOS CF has indicated that currently the processing is suspended “pending the conclusion of this process before the AEPD in order to implement it with the appropriate technical, legal, and security measures.” Specifically, it is specified in the EscritoBurgos2: “this data processing has not yet been implemented and is currently not operational since BURGOS CLUB DE FÚTBOL, S.A.D. is awaiting the conclusion of this process before the AEPD to be able to implement it with the appropriate technical, legal, and security measures. Therefore, currently no biometric data is being collected by the Responsible Party, constituting the measures outlined a planning for the future.” Additionally, Burgos states that “it is awaiting the decision of the Spanish Data Protection Agency itself on whether to continue retaining such data or proceed with its destruction” and that “the affected individuals have been given the option to delete it.”

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The documents evidencing the consent of the interested parties for the processing of their personal data, or documents that prove that they have been provided with the information required under Article 13 of the GDPR, before collecting their personal data (biometric and others whose provision is mandatory), were requested by the inspector on two occasions. However, BURGOS CF has only provided as Annexes VI and VII of EscritoBurgos1 the two models that it claims were provided to the interested parties before and after February 15, 2023.

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Annex VI. Conditions of membership, access, and permanence in the cheering section for the 22-23 season. Used before 15/02/23. It is not a model of consent for personal data but a contractual document, which obliges the provision of biometric and non-biometric personal data (name, ID number, contact details, etc.).

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Annex VII. Information on access to the cheering section through biometric data (fingerprint). Model used after 15/02/23. In which a specific consent regarding the processing of biometric data is signed.

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To verify what security measures have been adopted regarding data protection, they provide as Annex VIII the document prepared by the entity SEFPSAU, as the provider of the hardware and software on which the processing of biometric data is executed. This document provides descriptive information about the operation of the biometric system installed in the Burgos stadium, from which the following main points are extracted:

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- The personal data collected from each interested party in the registration process (enrollment in the system) are name, surname, ID number, an identifier generated by the system, and the biometric pattern of the fingerprint.
- The registration of the biometric pattern of the fingerprint is carried out at the microinformatics service points for members. Access to the cheering section is done through a single door that has three turnstiles with the possibility of access via biometric identification. Each of these turnstiles has several access methods (in addition to biometric reading): optical reading of barcodes or QR codes, and wireless reading of cards with an embedded chip.
- The comparison process that is performed is “biometric identification” (one to many). Thus, the



readers installed in the turnstiles send the encrypted biometric pattern of the fingerprint of the interested party accessing the stadium to the Biometric Identification Management Server (SGI) located at the club's facilities, which only the club has access to. The comparison performed on this server returns a positive or negative result of the identification.

- The biometric patterns are encrypted at all times with the keys of the device manufacturer. The latter certifies that the decryption keys are solely safeguarded by them and are not available to their clients. Additionally, it certifies that once the template of the fingerprint image is extracted, the latter is deleted.
- In point 6, it refers only to specific security measures of the elements or technical equipment.

Burgos has also provided (Annex IX of EscritoBurgos1) the content of the activity log related to "Access control through biometric data (fingerprint) to the Cheering Section."

1.

Response of July 27, 2023 (EscritoBurgos2).

On July 6, 2023, the inspector made a new request in which it is requested that the action plan for the security measures mentioned but not provided in the EIPD or in any other document of EscritoBurgos1 be submitted, along with the documentation evidencing the technical details of the measures described in the heading "regarding the biometric vector."

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In response to the new requirement, BURGOS CF submits as Document 1 the consent form that is signed at the time of fingerprint collection (not the consents signed by the subscribers).

As Document 2, it provides the document from the system provider that explains the security measures related to the biometric vectors obtained by the system, to which 3 Annexes are attached, issued by various providers of the installed system: NITGEN (manufacturer of the sensors), KIMALDI (guide for the integrator of biometric solutions), and SETELSA SECURITY (fingerprint control system at the client station CONACWIN). From these, only some of the technical specifications and characteristics of the biometric system used are extracted, such as that a biometric vector encrypted with an AES algorithm, owned by the manufacturer NITGEN and of an irreversible nature, is used for its own employees, clients (including the Club), and their suppliers (SEFPSAU). These documents do not constitute any developed plan of security measures for the purposes provided in Article 32 or 35.7.d) of the GDPR, aimed at addressing risks, including guarantees, security measures, and mechanisms that ensure the protection of personal data, and to demonstrate compliance with this Regulation, taking into account the rights and legitimate interests of the data subjects and other affected persons.

Various statements are also made regarding compliance with the principles set forth in Article 5 of the GDPR, the operation of the system through encrypted vectors that capture part of the fingerprint and generate a template, and the protocol applied in case of security breaches, of which no copy is provided. It is expressly stated that currently no measures are being applied, but rather it is a plan of future measures since no new biometric data is being captured.

2.

Response of September 4, 2023 (EscritoBurgos3).

Finally, on August 22, the inspector requests, and BURGOS CF responds as follows, without attaching any documents:

- That it present the risk analysis document: it refers to the content in the DPIA provided in Escrito1.
- That it provide information on the locations where the biometric patterns are stored (club servers -SGI- or Turnstiles): they are stored only on the club's server. It states, among other aspects, that "The norm is to collect 2 templates per finger and 2 fingers per subscriber. Enrollment is done using a USB desktop fingerprint reader, which interacts and is managed from the client application installed on the Club's equipment. – Once the enrollment process is completed, the client application transmits the metadata to the Club Server (SGI) which stores it." (...). "The turnstile (reader) does not store the

biometric pattern; it only serves as an emitter, collects the subscriber's template through the fingerprint reader, and transmits it in raw form (vLan via Private IP with HTTPS encryption) to the club's server (SGI)."

- That it indicate the security measures that are applied for storage. The response does not contain specific details of measures but rather an explanation of the authorization process. The club explains when a user is considered "unauthorized," the possibility of manually authorizing them in case of errors. An important point mentioned is that being "unauthorized" does not imply deleting their data.

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Describe how the suppression of the same occurs, stating that: "when an authorized employee of the club decides to delete a biometric pattern or all of them, they can do so from the Conacwin system, deleting them from the only place where they are stored, the Club Server (SGI); this process is irreversible, so once deleted, recovery is not possible." It also mentions the different causes for which someone can be disauthorized or for the deletion of data.

#### 5.4 Conclusions.

In light of the actions taken, it is considered that there are initially various pieces of evidence that justify the initiation of sanctioning proceedings against BURGOS CF, for having implemented a biometric system based on fingerprint detection to access the supporters' stand of its stadium on November 4, 2022, which did not comply with several requirements and principles required by data protection regulations, both when it was required as the only system for purchasing tickets and accessing the stadium, and when it became voluntary on February 15, 2023.

All of this is without prejudice to the fact that the prior actions taken may lead to the initiation of sanctioning procedures against other possible responsible parties for the implementation of these biometric systems in first and second division football stadiums, when other violations of the current regulations are deduced.

FIFTH: According to the report collected from the AXESOR tool, the entity BURGOS CLUB DE FÚTBOL, S.A.D. is a small and medium-sized enterprise (SME) that acts as a Sports Public Limited Company associated with LALIGA, established in 2018, with a business volume of €1,451,967 in 2021.

#### LEGAL GROUNDS

##### I Competence

In accordance with the powers conferred by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

##### II Biometric data as special category personal data

###### 2.1. Definition and characteristics of biometric data.

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Biometric data processing systems are based on collecting and processing personal data related to the physical, physiological, or behavioral characteristics of individuals, which may include their neural characteristics, through devices or sensors, creating biometric templates (also referred to as signatures or patterns) that enable the identification, tracking, or profiling of such individuals.

The GDPR defines biometric data in Article 4.14 as “personal data obtained through a specific technical processing, related to the physical, physiological, or behavioral characteristics of a natural person that (...) is unique to that person, such as facial images or fingerprint data.”

As noted in Opinion 4/2007 of the Article 29 Working Party (ART. 29 of Directive 95/46/EC, as an independent advisory body of the EU), regarding the concept of personal data (WP136), dated 20/06/2007, biometric data can be defined as:

“... biological properties, physiological characteristics, personality traits, or tics, which are, at the same time, attributable to a single person and measurable, even if the models used in practice to technically measure them involve a certain degree of probability. Typical examples of biometric data include those provided by fingerprints, retinal patterns, facial structure, voices, but also the geometry of the hand, venous structures, and even certain deeply rooted skills or other behavioral characteristics (such as handwriting, pulse rates, a particular way of walking or speaking, etc.). A particularity of biometric data is that they can be considered both as content of information about a specific person (So-and-so has these fingerprints) and as an element to link information to a specific person (this object has been touched by someone who has these fingerprints, and these fingerprints belong to So-and-so; therefore, So-and-so has touched this object). As such, they can serve as “identifiers.” Indeed, as they correspond to a unique person, biometric data can be used to identify that person. This dual nature is also present in the case of DNA data, which provide information about the human body and allow for the unequivocal identification of one, and only one, person.”

Any biometric access control system for the stadium, in order to be used, must first register the identity of the user in the system by capturing a series of biometric parameters (in this case, the fingerprints of subscribers who purchase access tickets for the BURGOS CF stadium's cheering section). The aim is to process those parameters to identify the person each time they enter and exit through the access point.

A biometric data point contained in a system is stored in the form of a biometric template or pattern, commonly referred to as a “vector.” A biometric template is a representation of a human biometric characteristic, such as a face or a fingerprint, in a way that is interpretable by a machine efficiently and effectively for a specific purpose or purposes. The biometric template is not intended to be interpreted by a person, like a photograph, but is designed to be processed in an automated process, that is, to be efficiently and effectively interpretable by a machine. This form of storage would allow for the individualization of a person and e-

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automatically take actions, profile or infer information about a subject such as attitudes or patterns of behavior, etc.

This technology can be truly intrusive and requires a calm ethical and legal debate, as it can have very adverse effects on fundamental values and human integrity. Consider just some of its special characteristics and think about the significant impact they produce when this data is compromised, compared to when other types of personal data are processed:

- Biometric systems are closely linked to a person, as they can use a specific unique property of an individual for identification. Each individual has unique fingerprints that show specific characteristics that can be measured to determine whether a fingerprint matches a registered sample. Therefore, they are unique, permanent, or definitive over time, and a person cannot free themselves from them; they can never be changed, not even with age, so the damage created in the event of compromise, loss, or intrusion into the system is irreparable in this case. Unlike a password, in the event of loss, the data of our fingerprint or face cannot be changed.
- Furthermore, because biometric data is unique to a person and perpetual, the user can use the same data across different systems.
- While traditional authentication methods such as passwords require a 100% character-by-character match to allow the user to access, for example, an account or application (deterministic methods),

biometric methods are referred to as "probabilistic" because they are based on the probability that the user attempting to access a particular device or application is the same person as the registered user. We can measure the performance of a biometric system based on three main characteristics. These are: false rejection rate (FRR), false acceptance rate (FAR), and equal error rate (ERR). The false rejection rate represents the probability of detection errors by a biometric system, meaning that it cannot recognize a user whose biometric characteristics are already in the database. In the event of a rejection, the person must verify their identity again. From a security and protection perspective, this rate does not necessarily mean that it is a negative outcome. Each biometric method, whether facial recognition, fingerprint, palm print, iris, etc., has different values for different rates based on which a system rejects or accepts inputs.

## 2.2. Biometric templates as special category personal data and high risk.

According to the definition given by Article 4.14 of the GDPR, biometric data processed by these systems will become personal data as long as the purpose of the processing is the identification or authentication of a person, as provided in Article 4.1 of the GDPR, which defines personal data as: "1. Personal data: any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more..."

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elements inherent to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that person."

In the present case, there is no doubt that biometric data of a personal nature is being processed, since the purpose of the system implemented for the acquisition of season tickets and access to the fan stand through fingerprint recognition is to identify the individuals accessing the stand, that is, to determine the identity, directly or indirectly, of the person. Given that the process assigns an identifier (the biometric template obtained by collecting the fingerprint samples from the interested parties) that allows for the individualization of a person and distinguishes them from others, through "elements inherent to the physical, physiological, genetic, psychological identity."

It should be noted that the approval of the GDPR (subsequent to the regulation of Book XII of the RGLALIGA) has represented a paradigm shift in the area of personal data protection, aiming to guarantee citizens control over their personal data, establishing high protection standards adapted to the digital environment in which we live. In accordance with the Principle of Proactive Responsibility, which inspires the new regulation, the new GDPR emphasizes that the data controller must seriously assess the risks of the processing they wish to establish concerning the rights and freedoms of the data subjects (always prior to initiating any processing, and continuously if they decide to do so), opting for a risk analysis approach from the design and by default, in order to identify them, determine the likelihood of materialization and their impact, and foresee measures and guarantees that eliminate or, at least, mitigate the detected risks, preventing their materialization. Likewise, certain obligations must be fulfilled, and specific principles established by the regulation must be respected.

Thus, whenever personal data of any kind is processed, the data controller must comply with the principles and obligations set forth in the data protection regulation for all types of personal data.

All these duties are exponentially emphasized when it comes to special category data, the processing of which is considered high risk. Both circumstances converge in biometric data aimed at uniquely identifying a person, as is the case here.

Therefore, this paradigm shift has particularly affected biometric data, since, on one hand—unlike what occurred under the regime prior to the GDPR—these have come to be considered as special category personal data under Article 9, the processing of which is generally prohibited, unless one of the exceptions provided for in Article 9.2 of the GDPR applies. This does not exempt the necessity for there to always be a lawful basis provided in Article 6 of the same, among many other requirements

and principles that must be complied with by anyone who decides to opt for this type of processing. According to Article 9.1 of the GDPR, the processing of biometric data is prohibited when it consists of: “biometric data aimed at uniquely identifying a natural person.” While Recital 51 of the GDPR includes both identification and authentication procedures: “since they are only included in the definition of biometric data when the fact of being processed with specific technical means allows for the identification or the

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unique authentication of a natural person. Such personal data must not be processed unless their processing is permitted in specific situations contemplated in this Regulation.”

In this regard, it is important to emphasize that the qualification as special category data necessarily implies the observance of special caution when determining whether it is possible to carry out processing of this nature. Among other things, and in addition to the existence of an exception that allows for the lifting of the prohibition in Article 9.1 of the GDPR, there must be a lawful basis under Article 6 of the GDPR and compliance with the principles of the GDPR. The entity intending to implement biometric data systems, in this case, BURGOS CF, must first analyze the concurrence of the necessary criteria of necessity, suitability, and proportionality of the processing.

That is, anyone intending to establish a processing of personal data of this nature must, first and foremost, ensure that they surpass what has been referred to in jurisprudence as “the triple test of proportionality,” particularly considering whether the processing of biometric data is suitable, proportional, and, above all, necessary. If there are other non-biometric systems that allow achieving the same purpose of effectively identifying-verifying the identity of individuals, it will not be necessary to initiate biometric processing, and therefore, implementing this system will be considered contrary to the GDPR. This assessment must be the starting point of their analysis, as only if these methods surpass the aforementioned triple test will compliance with other requirements or guarantees be required.

Furthermore, in addition to being special category personal data, the processing of such biometric data is also considered “high risk,” which will always require conducting an impact assessment (EIPD), in accordance with the provisions of Article 35.1 of the GDPR. This EIPD must be conducted prior to the commencement of processing and must also be carried out continuously. It will not be sufficient to conduct it; it must be considered valid because it meets the requirements set forth in the aforementioned article, particularly that it contains at least the information specified in Article 35.7 of the GDPR.

The processing of biometric data is considered high risk in accordance with the provisions of paragraph 4 of Article 35, which states that “...The supervisory authority shall establish and publish a list of the types of processing operations that require an impact assessment regarding data protection in accordance with paragraph 1...”, since it is included among the processing types listed in the document “Lists of types of data processing that require an impact assessment regarding data protection,” published by the AEPD in development of the provision contemplated in paragraph four of the aforementioned Article 35.

There is no doubt about the high-risk nature of this data, given that biometric data meets the criteria corresponding to numbers 4, 5, and 10 of that document (those involving the use of special categories of data; the use of biometric data; and those involving the use of new technologies or an innovative use of established technologies). Therefore, the processing of biometric data can never be initiated without a valid EIPD having been prepared prior to the processing.

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### 2.3. The BURGOS CF as the data controller for biometric data processing.

Article 4.2 of the GDPR defines "personal data processing" as:

"any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction;"

Biometric data can be processed and stored in different ways. Sometimes, the biometric information captured from a person is stored and processed in raw form, allowing the source from which it originates to be recognized without special knowledge; for example, a photograph of a face, a photograph of a fingerprint, or a voice recording. Other times, the raw biometric information captured is processed in such a way that only certain characteristics or traits are extracted and saved as a biometric template, referred to here as a "vector."

According to what the club itself has indicated, the biometric system implemented by BURGOS CF works with the biometric data obtained from a person (fingerprint), from which an algorithm selects characteristics to create a biometric template. Subsequently, when the fan enters the stadium, they undergo an access control where the system matches the person's identity with the biometric database. It can do this in a second while comparing hundreds of millions of data points.

That is, the biometric characteristics are subjected to a technical processing through which a person is recognized via a chronological process contained in all biometric data processing: its capture or data recording with subsequent storage or processing and the comparison or matching phase, the retention of the data, as well as its subsequent erasure, restriction, etc.

Therefore, the identification process necessarily includes the execution of several processing operations (data collection or capture, recording, storage, processing, comparison, authentication, retention, erasure, restriction, etc.) for which only BURGOS CF was responsible for the purposes provided in Article 4.7 of the GDPR, which states: "7) 'data controller' or 'controller': the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States."

In summary, when BURGOS CF implemented a new fingerprint detection system for the identification-verification of the identity of natural persons (instead of the usual method of identity verification using ID cards and purchase receipts through QR readers or chips in cards), it should have been aware that it was going to become responsible for...

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responsible for setting the purposes and means of various operations for processing special category and high-risk data.

From the evidence available in the file so far, and without prejudice to what may result from the investigation, it is initially deduced that the club implemented this system when it already had an identification-authentication system for the identity of individuals accessing the supporters' stand of its stadium, which was much less intrusive and achieved the same purpose. Therefore, biometric processing should never have been initiated under these conditions.

Moreover, in addition to initiating this processing without it being necessary and proportional, there is evidence that the processing was carried out in violation of many other obligations set forth in data protection regulations when we are dealing with biometric personal data, from which the alleged commission of 4 other possible administrative infringements arises. We will refer in the Legal Grounds III to VII of this agreement to the lack of concurrence of an exception that lifted the prohibition on processing biometric data under Article 9 of the GDPR, the failure to prepare or exceed a prior Data Protection Impact Assessment (DPIA) before the processing, which was instead late and invalid, the failure to comply with the information duties outlined in Article 13 of the GDPR, and the failure to obtain

the consent of the parents or legal guardians of minors under 14 years of age as referred to in Article 8 of the GDPR.

In summary, considering the fingerprint system that was implemented by BURGOS CF starting from November 4, 2022, based on the evidence obtained so far and without prejudice to what may be deduced in the investigation phase, it is concluded that the Club did not act with the diligence required of a data controller of special category and high-risk data such as biometrics, committing up to 5 administrative infringements of the GDPR, as outlined in the following Legal Grounds III to VII of this Initiation Agreement.

III. On the necessity of conducting a prior and adequate impact assessment for the processing.

5.1. Obligation and legal requirements for the Data Protection Impact Assessment (DPIA) in high-risk processing.

As previously stated, before implementing a data processing project based on this highly intrusive technology, it is also necessary to audit its operation beforehand, not in isolation but within the framework of the specific processing in which it will be employed (in this case, the sale of season tickets and access to the supporters' stand of the BURGOS CF stadium).

The Data Protection Impact Assessment (DPIA) thus appears as the tool required by the GDPR to ensure compliance with this aspect of the processing, as established in Article 35, paragraph 1 of the GDPR,

"When it is likely that a type of processing, in particular if it uses new technologies, by its nature, scope, context, or purposes, entails a high risk to the rights and freedoms of natural persons, the data controller shall..."

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"...before the processing, an assessment of the impact of the processing operations on the protection of personal data..."

As already indicated, the processing of biometric data has been classified as high risk by the AEPD, pursuant to the provisions of Article 35.4, so we must start from the premise that the processing of biometric data initiated by BURGOS CF following its communication of November 4, 2022, must have been preceded by a valid impact assessment, which included at least the sections provided for in Article 35.7 of the GDPR. This implies that it is not enough to carry out a DPIA; it must be passed in order to comply with the GDPR.

This assessment will be carried out prior to the commencement of processing but must be understood as a continuous or periodic assessment, in the sense established by Article 35.11 of the GDPR, which states: "Where necessary, the controller shall review whether the processing is in accordance with the data protection impact assessment, at least when there is a change in the risk posed by the processing operations."

A DPIA must meet the minimum requirements or content listed in Article 35.7 of the GDPR, which states:

"The assessment shall include at least:

- a) a systematic description of the envisaged processing operations and the purposes of the processing, including, where applicable, the legitimate interest pursued by the controller;
- b) an assessment of the necessity and proportionality of the processing operations in relation to their purpose;
- c) an assessment of the risks to the rights and freedoms of data subjects referred to in paragraph 1; and
- d) the measures envisaged to address the risks, including safeguards, security measures, and mechanisms to ensure the protection of personal data, and to demonstrate compliance with this Regulation, taking into account the rights and legitimate interests of the data subjects and other persons concerned."

In short, passing a DPIA requires that the controller of high-risk processing documents in writing that it

surpasses the assessment of suitability, necessity, and proportionality of the processing, and that it manages the specific risks of the processing from the design stage, with the practical application of measures aimed at them in such a way as to ensure an acceptable level of risk throughout the entire lifecycle of the processing, as established in Article 35 of the GDPR.

Furthermore, it requires prior consultation with the supervisory authority in cases where the controller has not taken measures to mitigate the risk in accordance with Article 36 of the GDPR.

#### 5.2. Non-compliance with the duty to submit a DPIA by BURGOS CF.

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In this case, the club has provided (Annex V of the WrittenBurgos1) the document “Impact Assessment Report on Data Protection” (DPIA Report) dated February 15, 2023, prepared by a third party (DATAINFO CONSULTORÍA Y ASESORÍA, S.L.). However, the processing began on November 4, 2022, as acknowledged by BURGOS CF itself.

This DPIA is subsequent to the initiation of biometric processing, since the processing began on November 4, 2022, and the date of the DPIA is February 15, 2023, which shows that for more than three months biometric data processing was carried out without complying with the obligation prescribed in Article 35 of the GDPR.

It is therefore recognized and evidenced that BURGOS CF initiated processing on November 4, 2022, without having previously conducted a DPIA, which clearly infringes the provisions of Article 35.1 of the GDPR, which prohibits any high-risk processing—such as that of biometric data—without having previously conducted a DPIA that analyzes the purpose, the risks, the proportionality assessment of the processing, and, where applicable, the measures to be taken to protect personal data.

IV. Existence of an exception under Article 9 of the GDPR, and legitimizing basis under Article 6 of the GDPR.

#### 4.1. On the necessity for an exception to the prohibition of processing biometric data.

As already indicated, biometric data, classified as "special category" data in Article 9, both of the GDPR and the LOPDGDD, are personal data whose use may pose significant risks to fundamental rights and freedoms, and therefore, in principle, their processing is prohibited under Article 9.1 of the GDPR, unless one of the exceptions provided for in paragraph 2 of the same article applies.

Another additional requirement for this type of processing will therefore be that prior to initiating the processing, the controller must also verify and demonstrate that one of the exceptions provided for in Article 9.2 of the GDPR or other specific legislation applies.

Thus, since their processing is generally prohibited, any exception to this prohibition must be subject to restrictive interpretation. As deduced from recitals 51 and 52 of the GDPR, which state: “Such personal data should not be processed unless their processing is allowed in specific situations provided for in this Regulation, given that Member States may lay down specific provisions on data protection in order to adapt the application of the...”

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rules of this Regulation for compliance with a legal obligation or for the performance of a task carried out in the public interest or in the exercise of public powers conferred on the data controller. In addition to the specific requirements of that processing, the general principles and other rules of this Regulation must apply, particularly regarding the conditions for the lawfulness of processing. Exceptions to the general prohibition on processing those special categories of personal data must be explicitly established, among other things when the data subject gives their explicit consent or in relation to specific needs, particularly when the processing is carried out within the framework of legitimate



activities by certain associations or foundations whose objective is to enable the exercise of fundamental freedoms.

“Exceptions to the prohibition on processing special categories of personal data must also be authorized when established by Union or Member State law, provided that appropriate safeguards are in place to protect personal data and other fundamental rights, when in the public interest, particularly the processing of personal data in the context of labor legislation, social protection legislation, including pensions, and for security, monitoring, and public health alert purposes, the prevention or control of communicable diseases, and other serious threats to health (...)”

In this context, the exceptions that could potentially allow for the lifting of the general prohibition on processing biometric data aimed at identifying-verifying the identity of natural persons are those provided for in Article 9.2. of the GDPR, with the following literal wording, which must be interpreted restrictively, always in favor of protecting the rights and freedoms of citizens in case of doubt:

“2. Paragraph 1 shall not apply when one of the following circumstances applies:

- a) the data subject has given explicit consent to the processing of such personal data for one or more specified purposes, except where Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject;
- b) the processing is necessary for compliance with a legal obligation and the exercise of specific rights of the data controller or the data subject in the field of labor law and social security and protection, to the extent that Union or Member State law permits;
- c) the processing is necessary to protect the vital interests of the data subject or another natural person, in the event that the data subject is not physically or legally capable of giving consent;
- d) the processing is carried out, within the framework of its legitimate activities and with appropriate safeguards, by a foundation, association, or any other non-profit body whose purpose is political, philosophical, religious, or trade union, provided that the processing relates exclusively to current or former members of such bodies or to persons who have regular contact with them in relation to their purposes and provided that the personal data are not disclosed outside of them without the consent of the data subjects;
- e) the processing concerns personal data that the data subject has made manifestly public;

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- f) the processing is necessary for the formulation, exercise, or defense of claims or when courts act in the exercise of their judicial function;
- g) the processing is necessary for reasons of essential public interest, based on Union law or the laws of the Member States, which must be proportional to the objective pursued, respect the right to data protection in essence, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject;
- h) the processing is necessary for preventive or occupational medicine, the assessment of the worker's capacity to work, medical diagnosis, the provision of health or social care, or the management of health and social care systems and services, based on Union law or the laws of the Member States or pursuant to a contract with a healthcare professional and without prejudice to the conditions and guarantees set out in paragraph 3;
- i) the processing is necessary for reasons of public interest in the field of public health, such as protection against serious cross-border health threats, or to ensure high standards of quality and safety of health care and of medicines or medical products, based on Union law or the laws of the Member States that establish adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy.
- j) the processing is necessary for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, based on Union law or the laws of the Member States, which must be proportional to the objective pursued, respect the right to data protection in essence, and establish adequate and specific measures to

protect the interests and fundamental rights of the data subject.”

Therefore, in addition to previously verifying that the processing passes the proportionality test, if the controller does not demonstrate that their processing falls within one of these exceptions, they cannot even initiate the processing without committing an infringement of Article 9 of the GDPR.

#### 4.2. Necessity of a lawful basis for processing under Article 6.1.

In addition to lifting the prohibition on processing, the controller must also demonstrate that their processing can be carried out because one of the legal bases legitimizing the processing contained in Article 6.1 of the GDPR applies, which are a general requirement for the processing of any personal data. That is, the existence of an exception that hypothetically allows lifting the prohibition on processing biometric data will not be sufficient; it does not replace the necessity for there to also be a lawful basis in the case of biometrics. The controller must be able to demonstrate that both conditions are met, in addition to passing the aforementioned proportionality test, and so on, regarding the other requirements set forth in the regulations. Therefore, we speak of "cumulative requirements" and not alternative ones.

Thus, Article 6 of the GDPR also starts from the fact that processing personal data in general is something exceptional, maintaining that:

“1. Processing shall be lawful only if at least one of the following conditions is met (commonly referred to as ‘lawful basis’):

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- a) the data subject has given their consent for the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract in which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

Therefore, in the event that no lawful basis applies, the previously mentioned infringements would be supplemented by an infringement of Article 6 of the GDPR.

#### 4.3. Analysis of the concurrence of an exception and a lawful basis in the present case.

Regarding the case at hand, BURGOS CF refers to these issues in what it calls the analysis of "legitimacy and lawfulness," from point 1.3 of the DPIA dated February 15, 2023, where both the concurrent exception and the lawful basis that presumably legitimize the biometric processing for the purpose of controlling access to the fan stand of its stadium are referenced. In this sense, BURGOS clearly distinguishes two periods (before and after the DPIA) in which there has been a change in the criteria of the legitimizing basis and exception that supported the possibility of processing biometric data.

It is stated that the legitimacy for the use of the system prior to February 15, 2023, was based on compliance with a legal obligation and that the lifting of the prohibition on processing special category data was based on paragraphs b and g of Article 9.2 of the GDPR, and on the lawful basis of 6.1.c). From February 15, 2023 (following the agreement of the CEVRXID of that same date), the DPIA states

that the processing is based on the consent of the data subjects, in accordance with Article 9.2.a) and 6.1.a) of the GDPR, whose data subjects are the individuals with access to the Fan Stand of Estadio El Plantío.

Thus, regarding the lawful basis for processing under Article 6 of the GDPR, it is claimed that there was a concurrence of a lawful basis under Article 6.1.c) (compliance with a legal obligation) before February 15, 2023, but after that date, it is stated that the basis is that of 6.1, without specifying exactly which letter/cause they are referring to. They admit that compliance with a legal obligation cannot be the basis as indicated in Report 98/22 of the legal office of this Agency, and they state that they are changing the concurrent exception. However, they do not provide any other alternative regarding the lawful basis, confusing exception with lawful basis.

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While this omission of indicating the legal basis for processing may affect the validity of the DPIA, it is true that to assess whether there is a violation of Article 6 of the GDPR, the main thing is to verify that there is indeed a legal basis, even if the controller has not correctly determined or included it in the DPIA.

In this case, it can be established from the outset that there is a legal basis that enables the club to carry out personal data processing in general (not for biometric data, as this would require an exception under Article 9). Specifically, the one referred to in Article 6.1.b), which states that: “the processing is necessary for the performance of a contract to which the data subject is party or for the implementation at the request of the data subject of pre-contractual measures.” Since the purchase of a ticket or season pass constitutes the creation of a contractual relationship between the purchaser and the club, which is governed by the conditions set forth on the front and back of the ticket/pass and the conditions document that the club provides as Annex VI of its first written allegations. Therefore, initially, it cannot be attributed a violation of Article 6 of the GDPR.

However, although there was a legal basis, this only legitimized the club to process other non-biometric personal data, which were typically required to access by the previous access methods, but it did not legitimize in any case to initiate biometric processing if there is no exception under Article 9.2 that would allow lifting the prohibition on processing biometric data.

The lack of an exception that would allow for the processing of biometric data prior to the DPIA is clear and unequivocal, as recognized by the Club itself. This is not a disputed issue.

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On one hand, we have the Club acknowledging that it initiated the processing of biometric data without obtaining explicit consent and for the specific purpose referred to in the exception of Article 9.2.a), since the biometric system was mandatory, there was no option for an alternative access method, and the fan in this cheering section was required to provide their biometric data to acquire the pass and access the section. This is corroborated by the content of the model that was signed until February 15, 2023 (Annex VI), which does not even qualify as a model of consent regarding data protection, constituting a simple contractual document that outlines the conditions of membership, access, and permanence that the purchaser must sign to be able to acquire the pass. It is duly accredited and recognized that prior to the DPIA, the club was not obtaining consent for the protection of biometric data that could fit within the exception of Article 9.2.a).

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On the other hand, the club acknowledges that the exceptions of 9.2.b) and 9.2.g) (compliance with a legal obligation and essential public interest) do not justify the processing of these data, adopting the interpretation made by Report No. 98/2022 of this Agency, as have CEVRXID and LALIGA. Based on this, they claim to have changed from the explicit consent exception of 9.2.a) starting from February 15, 2023.

This implies, without a doubt, that between November 4, 2022, and February 15, 2023, BURGOS CF initiated the processing of biometric data without an exception that lifted the prohibition on processing

these data.

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Consequently, it is also appropriate to initiate sanctioning proceedings for the violation of Article 9 of the GDPR, given that there is an acknowledgment by the accused and sufficient evidence that biometric processing was initiated without any legal exception justifying it until February 15, 2023.

V On the requirement that the processing is necessary, suitable, and proportional

One of the obligations that corresponds to every data controller is to ensure that the processing complies with the principles set forth in Article 5 of the GDPR.

In the case of biometric data, due to its special category and high risk, it is essential to highlight the importance of respecting the principle of data minimization, as provided in Article 5.1.c), which states:

“1. Personal data shall be:

a) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

Respecting this principle must be the starting point for the initiation of any processing, with the controller first considering whether this processing will truly be necessary, suitable, and proportional before commencing it. If this processing is of high risk—such as in the case of biometrics—it must reflect this prior assessment of necessity and proportionality in a specific document called a Data Protection Impact Assessment (DPIA), in accordance with the provisions of Article 35.7.b) of the GDPR, which states that “an assessment of the necessity and proportionality of the processing operations in relation to their purpose must be carried out and passed.”

This is confirmed by Recital 39 of the GDPR, which emphasizes the importance of the processing being necessary, stating that “Personal data should only be processed if the purpose of the processing cannot reasonably be fulfilled by other means.”

In the same vein, the Article 29 Working Party, in its Opinion 3/2012 on the evolution of biometric technologies, indicates that “When analyzing the proportionality of a proposed biometric system, it is necessary to consider beforehand whether the system is necessary to meet the identified need, that is, whether it is essential to satisfy that need, and not just the most suitable or cost-effective. A second factor to consider is the likelihood that the system will be effective in addressing the need in question in light of the specific characteristics of the biometric technology to be used. A third aspect to weigh is whether the resulting loss of privacy is proportional to the expected benefits. If the benefit is relatively minor, such as increased convenience or slight savings, then the loss of privacy is not appropriate. The fourth aspect to evaluate the suitability of a biometric system is to consider whether a less invasive means of achieving the desired end would suffice.”

This idea is reiterated in section 72 of the Guidelines 3/2019 on the processing of personal data through video devices, dated January 29, 2020, from the EDPB, which states:

“The use of biometric data and, in particular, facial recognition entails high risks to the rights of data subjects. It is essential that the use of such technologies occurs while duly respecting the principles of legality,

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necessity, proportionality, and data minimization as established by the GDPR.

Although the use of these technologies may be perceived as particularly effective, data controllers must first assess the impact on the fundamental rights and freedoms and consider less intrusive means to achieve their legitimate purpose of processing. In other words, it is necessary to address the question of whether this biometric application is truly essential and necessary, or merely “convenient.”

Therefore, processing personal data that is not suitable (appropriate), necessary, and proportional is always prohibited and constitutes, in itself, the commission of an administrative infringement of Article 5.1(c) of the GDPR.

Since the processing of biometric data involves restricting the rights and freedoms of the data subjects, the obligation to process only "the personal data that are adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed," as provided by the principle of data minimization/processing in Article 5.1(c) of the GDPR, must be interpreted in accordance with the provisions of the repeated jurisprudence of our Constitutional Court regarding the necessity of establishing that any restrictive measure of fundamental rights (biometric processing in this case) surpasses what is referred to as "the triple test of proportionality."

This implies that, first and foremost, it is necessary to ascertain whether it meets the following three requirements or conditions referred to by the Constitutional Court: "whether such a measure is capable of achieving the proposed objective (suitability test); whether, furthermore, it is necessary, in the sense that there is no other, more moderate measure to achieve such a purpose with equal effectiveness (necessity test); and finally, whether it is balanced or proportionate, as it derives more benefits or advantages for the general interest than harms to other conflicting goods or values (strict sense proportionality test)."

In light of the background information in this file, the reported club claims to have conducted an assessment of suitability, necessity, and proportionality of biometric processing for the purpose of controlling access to the fan stand of its stadium through fingerprint recognition in its DPIA dated February 15, 2023. It is therefore appropriate to analyze whether the intended processing surpasses the so-called triple test of proportionality, which, according to the aforementioned doctrine of the Constitutional Court, involves analyzing the following:

1.

Whether the processing is capable of achieving the proposed objective (suitability test).

This involves determining whether the processing is appropriate for the purpose it pursues. The processing must respond to certain deficiencies, demands, requirements such as obligations or objective opportunities and can achieve the proposed objectives with sufficient effectiveness.

When questioned about the "Suitability Test" by the inspector, BURGOS CF refers to its response in the DPIA dated February 15, 2023, which states the following: "With this measure, the established objective of ensuring safety at matches is achieved more effectively based on a mission carried out in the public interest, with a legitimacy based on express consent, as it is the most reliable method we currently have according to the technique of being able to verify a person's identity. On the other hand, the installation of systems of

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Biometric recognition is the only way to comply with the requirements of the State Commission against Violence, Racism, Xenophobia, and Intolerance, as well as the orders imposed by La Liga." Indeed, it has been confirmed that BURGOS CF already had two other methods for ticket acquisition and access to the supporters' stand before November 4, 2022, which will be referenced in the necessity judgment.

Regarding the arguments put forward concerning suitability, the club merely states that biometric control is more effective than the previous access system as it is the most reliable method, but does not provide evidence for this claim. On the contrary, considering that the biometric system generates false acceptance rates, false rejections, and equal errors, as previously indicated, these errors are in addition to those that may already occur when using QR code readers, barcodes, or chip cards used in other access systems. It must be taken into account that what the judgment of suitability, necessity, and proportionality must evaluate is the effectiveness of the system for the protection of the rights and freedoms of the individuals providing their biometric data, and not those that favor the organization.

On the other hand, the fact that CEVRXID and LALIGA ordered the establishment of this biometric system does not, by itself, imply that this system is suitable, nor necessary or proportional. The

existence of a mandate from a superior entity does not justify the responsible party in failing to assess whether this system is suitable, necessary, or proportional prior to installing it in their stadium. Finally, it cannot be accepted that the processing of biometric data was suitable, necessary, or proportional simply because the system is based on express consent, as the necessity of the processing is a prior issue and unrelated to what may constitute the exception of Article 9 of the GDPR and the legal basis legitimizing Article 6 of the GDPR. Thus, even if it may constitute a reason to lift the exception of Article 9, it does not affect the judgment of proportionality at all. Especially when it comes to the necessity judgment, since, as indicated by the jurisprudence of our Constitutional Court, necessity can never depend on what the affected party decides.

1. If, in addition, it is necessary, in the sense that there is no other more moderate measure to achieve such a purpose with equal effectiveness (necessity judgment). It is necessary to determine whether the pursued purpose cannot be achieved in a less harmful or invasive way, that is, whether there is no alternative treatment that is equally effective for achieving the intended purpose.

Necessity should not be confused with the utility of the system. It may be that fingerprint detection facilitates not having to carry a card, that it takes a few seconds less to access, that it is automatic and instantaneous, and not excessively costly. Obviously, a fingerprint system may be useful, but it does not have to be objectively necessary (the latter being what must truly be present). As established in Opinion 3/2012 on the evolution of biometric technologies - of GT 29 -, it must be examined "whether it is essential to meet that need, and

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"not only the most appropriate or cost-effective." Options and alternatives must be analyzed before implementing a new system that imposes an excessive limitation on the rights of each user, when there may be less invasive means of privacy, and not opting for what is practical or agile and comfortable when the rights of their holders are at stake.

Thus, the responsible party considering the implementation of a biometric data processing system must be meticulous in their task of thoroughly analyzing all equally suitable and effective alternative options that are less intrusive. Consequently, the feasibility study of other possible alternative options that do not require the use of special data must be documented along with the DPIA, comparing all options and documenting the conclusions. This has not been done by BURGOS CF. Despite stating that there are two other alternatives to the biometric access method available, it does not conduct or attach to its DPIA any analysis regarding the differences and impact of applying the biometric method versus other alternative options from the perspective of the risks and impact on the rights and freedoms of the data subjects.

The necessity assessment carried out by BURGOS CF in the DPIA is entirely insufficient to justify the processing of biometric data. To assess the necessity of the processing, the proposed measure must be supported by evidence that describes the problem to be addressed with the measures, how this will be addressed with the measure, and why existing or less intrusive measures cannot sufficiently address it.

Thus, according to what BURGOS CF has stated and what is observed in Annex I of EscritoBurgos1, there are other pre-existing alternatives that were already used previously to verify the identity of fans accessing the supporters' stand: "Access to the supporters' stand is through a single door that has three turnstiles with the possibility of access via biometric identification. Each of these turnstiles has several access methods (in addition to biometric reading): optical reading of barcodes or QR codes, and wireless reading of cards with embedded chips."

According to the club, the pre-existing modalities to fingerprinting are always listed as an "access" that can be reverted to, for which there is no further record or log than the passage of the aforementioned entry through the turnstiles through which those individuals access.

Thus, the subscription titles for the supporters' stand, which are the form that access titles take, contain personal data that the accused required for their issuance (name, ID number, etc.), a power

granted to the event organizer by the regulations on ticket sales and access to sports venues, and it implies the creation of a legal relationship between the parties of a contractual nature. These same data contained in the subscription card in its various forms (QR/chip card) serve as the basis for recording and using the fingerprint.

Therefore, this implies that in the supporters' stands of the El Plantío stadium, there are 3 possible access systems, two of which are non-biometric and predate the implementation of the biometric system. In light of what BURGOS CF itself has stated, these two systems ceased to be used between November 4, 2022, and February 15, 2023, during the period in which the system was implemented.

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biometric data as mandatory, becoming available and operational again since then.

It is also stated that since February 15, 2023, the collection of new biometric data and the requirement for biometric control in stadiums have ceased, with this system suspended until the AEPD determines what to do. However, it is mentioned that biometric control continues to be used for access to the supporters' stand by those season ticket holders who choose this option voluntarily. It is also noted that the data is retained until the end of the season, although it is still being kept at this time, pending a determination on what to do.

It is thus evidenced that the reported Club had and has two modalities of identity verification that are clearly less intrusive to the rights of individuals accessing the stadium, and that identify the season ticket holder with the same effectiveness as biometric systems. Access can be granted with a physical card or with a mobile subscription (NFC chip) or by reading the QR code of the season ticket, whose identity can be verified by simply presenting the ID card. This system had already been functioning before the implementation of the fingerprint reader system.

Consequently, if there are available alternatives for all fans to choose non-biometric access at any given time, and a free, express, and specific consent is articulated that allows opting between these other less intrusive methods and biometric ones, this implies that the processing of biometric data is not necessary for the purpose of controlling the identity of those accessing the supporters' stand. In no case is the necessity judgment surpassed because biometric processing is not necessary.

When questioned about the necessity judgment during the inspection, BURGOS CF does not provide reasons justifying it. The EIPD merely states the following: "Regarding the issue raised concerning the necessity of incorporating a biometric recognition system, we must argue that this measure contributes to preventing violence in sports in two ways. On one hand, we have its deterrent effect as it acts as a preventive factor; if a person knows that the organization has their unique identification through fingerprint, they will be much more careful when carrying out actions that involve acts of violence, racism, or intolerance inside or outside the stadium. On the other hand, this type of identification can reliably help determine the identity of individuals involved in hypothetical violent acts occurring in the context of football matches."

However, the argument of contributing to preventing violence in sports cannot be accepted as valid to consider these biometric systems necessary for this reason. The current regulations regarding ticket sales and access to sports venues (RGLALIGA; Law 19/2007 against violence, racism, xenophobia, and intolerance in sports, and its implementing regulation approved by RD 557/2011) suggest that there are other ways to prevent violence in stadiums and identify those responsible, which function adequately for this purpose. Thus, among other means, this regulation allows for tickets to be nominative, that there may be surveillance systems inside the stadiums, which can be placed at the accesses and surroundings of the stadium, and each seat is assigned to the person who purchases the ticket. Through traditional access methods using a nominative subscription with the presentation of the ID card, it is possible to...

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It can identify and register individuals accessing the stands. It is not understood that fingerprinting will add any advantage that allows for the identification of those who presumably may have committed acts of violence during the match in question. And much less that it will contribute to preventing it.

It follows that the access system using fingerprints, compared to the traditional system of selling nominative tickets, does not provide a clear and differentiated advantage in stadium security, since existing means can equally identify potential offenders and verify the events that occurred.

2.

Finally, if it is weighed or balanced, as it derives more benefits or advantages for the general interest than harms to other conflicting goods or values (strict proportionality judgment).

This is determined, among others, in “STC 66/1995, of May 8, F. 5; STC 55/1996, of March 28, FF. 7, 8, and 9; STC 270/1996, of December 16, F. 4.e; STC 37/1998, of February 17, F. 8; STC 186/2000, of July 10, F. 6).”

In this aspect, the severity of the risk to the rights and freedoms of the processing, and its intrusion into the fundamental right to Personal Data Protection must be appropriate to the objective pursued and proportionate to its urgency and severity. The benefit that the processing provides to society from the perspective of Data Protection must be weighed, maintaining a balance with the impact it represents on other fundamental rights. However, although it may yield partially, in no case can the absolute denial of the right to Data Protection be assumed, nor can it be stripped of its essential content.

There must be a logical link between the measure and the legitimate objective pursued.

To respect the principle of proportionality, the advantages resulting from the measure must not be outweighed by the disadvantages that the measure causes concerning the exercise of fundamental rights. One of the factors that play into proportionality is the effectiveness of existing measures, above the proposed ones; if similar or identical measures already exist in the same context, they must be considered; otherwise, the assessment of proportionality has not been properly conducted.

Regarding the Proportionality Judgment, BURGOS CF states in its EIPD only the following: “It should be noted that BURGOS CLUB DE FÚTBOL, S.A.D. has been informed that there are several individuals with precautionary measures from the corresponding courts with jurisdiction in the matter, prohibiting their entry to the stadium and ordering a distance of 500 meters. To avoid any other type of more lenient control, control through biometric data is configured as an essential system that cannot be deceived, since the fingerprint is an inherent data of each person, which cannot be modified or transferred. In this way, we determine that, in relation to...

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with the interference that this system entails on the rights of the interested party and conducting a balancing judgment between the interference with their right to privacy, this is conceived as minimal compared to the assurance of the right to life and physical integrity of each person that the proposed control measure seeks to achieve.”

Again, the judgment made is incorrect as it does not weigh the advantages and disadvantages of using this biometric system. But above all, and in relation to the requirement of proportionality, because the purported conflict between the right to life and physical integrity of individuals and the right to the protection of personal data is not resolved solely through a biometric access system, given that there exists another pre-existing alternative method that allows for the identification and verification of the identity of those individuals who are prohibited from accessing the stadium with the same effectiveness as a fingerprint.

Considering that the computerized control and ticket sales management system, as well as access to football stadiums legally provided, can require tickets to be nominative, which is a common and standardized type of access, and existing another less intrusive modality that the EIPD recognizes, it



should prevail as it is preferable to the biometric fingerprint detection system.

From all of the above, it is clearly deduced that the access system through fingerprint implemented by BURGOS CF in accordance with the provisions of the EIPD of February 15, 2023 does not meet this triple proportionality test, for the specific purpose intended by the club ("access control to the animation stand through identification by fingerprint") and within the specific framework of the BURGOS CF stadium.

In this case, the intended purpose is to uniquely identify individuals accessing the animation stand of the stadium through biometric data, and considering that there exists a mode of access that fulfilled and fulfills the same purpose in a less intrusive manner, it is considered that the processing of biometric data carried out by BURGOS CF is neither necessary nor proportional, thus infringing the provisions of the data minimization principle contained in Article 5.1.c), which advocates that the data processed must be limited to what is necessary to achieve those purposes.

All of this, to the extent that the club acknowledges that the biometric system continues to operate voluntarily, and that it continues to retain the previously collected biometric data, since this will mean continuing to process biometric data when it is not necessary, appropriate, or proportional.

Therefore, the club is warned that the infringement of Article 5.1.c) continues to exist currently and will continue, as long as this biometric processing is maintained without being suitable, necessary, or proportional, regardless of whether it is voluntary or mandatory.

Furthermore, it should be noted that the EIPD submitted cannot be considered valid, as it does not meet the minimum requirements established in Article 35.7 of the GDPR. Not only in terms of failing to surpass the necessity and proportionality assessment, but also for not adequately describing the operations and purposes of the

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treatment, does not contain an adequate analysis of the risks of the treatment from the perspective of the rights and freedoms of individuals, nor does it propose the appropriate and sufficient measures necessary to reduce the impact of the threats posed.

#### VI On the Consent of Minors

In addition to the previously stated requirements, it must be taken into account that BURGOS CF in the document of Annex VI is allowing minors under 18 years of age to access the supporters' stand of the stadium as long as there is a signed consent from the parents or legal guardians, without establishing any minimum age limit, and including in the signature footer of the document the possibility of signing by the representative in case of being a minor) as acceptance of the terms of use.

Thus, section 1 of this Annex VI states that: "1.- Anyone accessing the Supporters' Stand must be at least eighteen (18) years old. If this is not the case, signed consent from the parents or legal guardian will be required."

Through this clause, the reported club has been collecting the contractual consent required to compensate for the lack of capacity of the minor to acquire the season ticket, for the purposes of the contractual relationship between the club and the season ticket holder.

Given the possibility that minors may attend the stadium (with no age limitation), and allowing them to acquire the season ticket as long as the document of Annex VI is signed by their parents or guardians, this will imply that they will be obliged to provide their personal data.

Specifically regarding the processing of biometric data, as of February 15, 2023, BURGOS CF considered it necessary to request consent to proceed with the processing of this personal data.

However, the club does not demonstrate that it is collecting the provision of consent for the biometric processing of minors, either (i) from parents or guardians of minors under 14 years old or (ii) from the minors themselves who are over 14 years old, regarding the processing of their biometric personal data since February 15, 2023, as this possibility does not appear in the model of Annex VII.

It turns out that for minors, no provision is established in that document regarding the provision of

consent to process their biometric personal data.

On this particular matter, Article 8 of the GDPR states that,

“1. When Article 6(1)(a) applies in relation to the direct offering of information society services to children, the processing of a child's personal data shall be lawful when the child is at least 16 years old. If the child is under 16 years old, such processing shall be lawful only if consent is given or authorized by the holder of parental responsibility or guardianship over the child, and only to the extent that it is given or authorized.”

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Member States may establish by law an age lower than such purposes, provided that it is not less than 13 years.

2. The data controller shall make reasonable efforts to verify in such cases that consent was given or authorized by the holder of parental responsibility or guardianship over the child, taking into account the available technology.

3. Paragraph 1 shall not affect the general provisions of the contractual law of the Member States, such as the rules relating to the validity, formation, or effects of contracts in relation to a child.

Furthermore, it is necessary to comply with the conditions set forth in Article 7 of the LOPDGDD, which on the "Consent of minors" states that,

“1. The processing of personal data of a minor may only be based on their consent when they are over fourteen years old. Exceptions are made in cases where the law requires the assistance of the holders of parental responsibility or guardianship for the celebration of the act or legal business in the context of which consent for processing is obtained.

2. The processing of data of minors under fourteen years old, based on consent, shall only be lawful if the consent of the holder of parental responsibility or guardianship is obtained, to the extent determined by the holders of parental responsibility or guardianship.”

In conclusion, at this moment there is sufficient evidence that a presumed violation of Article 8 of the GDPR has occurred, since it appears that the club is not obtaining the consent of minors for the processing of their biometric data, either from their parents or guardians or directly from them, depending on the age of the minor.

VII On the information duties of Article 13 of the GDPR

One of the obligations of the data controller for any processing of personal data is to comply with the information duties to the data subjects as provided in Articles 12 to 14 of the GDPR.

In accordance with the provisions of Article 12.1 of the GDPR, it is based on a Principle of

“Transparency of information, communication, and modalities for exercising the rights of the data subject”:

“1. The data controller shall take appropriate measures to provide the data subject with all information indicated in Articles 13 and 14, as well as any communication in accordance with Articles 15 to 22 and 34 related to the processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means.

When requested by the data subject, the information may be provided verbally, provided that the identity of the data subject is demonstrated by other means.”

These information duties are specified in Articles 13 and 14, with the provisions in Article 13 of the GDPR on “Information to be provided when personal data are obtained from the data subject” being applicable to the present case:

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1. When personal data relating to an individual is obtained from that individual, the data controller shall provide the following information at the time the data is obtained:
  - a) the identity and contact details of the controller and, where applicable, of their representative;
  - b) the contact details of the data protection officer, where applicable;
  - c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
  - d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
  - e) the recipients or categories of recipients of the personal data, where applicable;
  - f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, a reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.
2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data are obtained, with the following information necessary to ensure fair and transparent processing of data:
  - a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;
  - b) the existence of the right to request from the data controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
  - c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
  - d) the right to lodge a complaint with a supervisory authority;
  - e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
  - f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.
3. When the data controller intends to further process personal data for a purpose other than that for which they were collected, they shall provide the data subject, prior to that further processing, with information on that other purpose and any other relevant information in accordance with paragraph 2.
4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

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As previously mentioned, when requested by the inspector to justify compliance with the duty to inform the interested party of the content provided in the aforementioned Article 13 of the GDPR, Burgos has provided two documents that it used, both prior to February 15, 2023, and subsequently (Annexes VI and VII).

First, Annex VI of the Written Burgos<sup>1</sup>, which according to BURGOS CF is the only document signed by the interested parties when acquiring the subscription before February 15, 2023, is not a consent for the processing of personal data, but a contractual document that contains the "Conditions of membership, access, and permanence in the animation stand. Season 2022/2023," and which must be signed in order to acquire the subscription.

However, this document requires the collection of personal data for the "achievement of the season subscription." In its section 3, it refers to the obligation to provide personal data such as name,

surname, ID number, contact details, and to sign a consent for data protection law, which is not provided. And in section 8, it contains the obligation to submit to biometric access control prior to obtaining the subscription, collecting for this purpose their biometric data, indicating that any other access system will be exceptional.

It should be noted that the inspector requested a second time from BURGOS CF to provide the supposed data protection consent document that the interested parties were to sign before their data was collected as referred to in section 3, but the club did not provide it in Written<sup>2</sup> Burgos (limiting itself to providing Annex VII again), nor in Written<sup>3</sup>. Therefore, we must consider that this consent was not signed.

From this, it follows that, until February 15, 2023, biometric and other personal data (ID number, name, surname, etc.) were collected without properly informing the purchasers of the subscription of the information provided in Article 13 of the GDPR. Since the only document they signed was this Annex VI, which only contained the following generic information regarding personal data protection:

[...] 8.- Any person accessing the Animation Stand "LA HINCHADA DEL ARLANZON" must submit to biometric access control, for which, prior to obtaining the subscription for this area, they must provide the capture of the fingerprint that is necessary. Any other access system that does not involve biometric recognition will be exceptional. The biometric data collected is for the exclusive use of entry to the sporting event, and the subscriber may request their removal from this file by canceling their subscription.

[...] 12.- For the purposes provided in Organic Law 3/2018 of December 5 on personal data protection and the guarantee of digital rights, we inform you that the personal data collected in this document, as well as those obtained by biometric means, will be included in a personal data file owned by the Club. In this regard, the undersigned gives their express consent for the processing of their aforementioned personal data."

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In summary, before February 15, 2023, there is no doubt that BURGOS CF was collecting personal data from these subscribers (700 people according to the club itself), both biometric and of other types, without informing the interested party of all the aspects expressed in Article 13, resorting to a generic formula. This document does not comply with the information required by the GDPR, which has been significantly expanded compared to previous legislation.

For the period after February 15, 2023, BURGOS CF provides the document "Information on access control to the animation stand through biometric data (fingerprint)" (Annex VII of the Written<sup>Burgos1</sup>). The document, used as indicated by Burgos after February 15, 2023, is indeed an express consent that informs the signer about the processing through biometric control. Thus, it states that by signing the document, the interested party consents to "the processing of the biometric data related to my fingerprint or pattern thereof for the described purpose." This contains most of the information required in Article 13, except for that provided in 13.2.c) regarding the possibility of withdrawing the granted consent. For although the possibility of requesting the right to erasure of the collected data is expressed, this is not equivalent to revoking consent.

In summary, from the documents in the file and without prejudice to those that may be submitted during the instruction, at this moment there is sufficient evidence that BURGOS has been collecting personal data from the 700 season ticket holders without adequately informing them of all the aspects required for data protection purposes, which could also imply a violation of Article 13 of the GDPR.

VIII Classification of the violations and qualification for the purposes of prescription.

As has been stated in the Legal Grounds III to VII of this agreement, it is considered that BURGOS CF may have committed the following violations of the current regulations on data protection:

#### 8.1. Violation of Article 35 of the GDPR

As stated in Legal Ground V, in accordance with the evidence available at this moment, and without prejudice to what results from the instruction, it is considered that the facts presented could violate the

provisions of Article 35 of the GDPR, which could constitute the commission of an administrative violation classified in Article 83.4.a) of the GDPR which states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42 and 43.”

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For the purposes of prescription, the LOPDGDD establishes in its article 73.t) that: “In accordance with what is established in article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and will be subject to a two-year prescription period, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

t) The processing of personal data without having carried out the impact assessment of the processing operations on the protection of personal data in cases where it is required.”

## 8.2. Infringement of Article 9 of the GDPR.

As stated in Legal Basis IV, in accordance with the evidence currently available, and without prejudice to what may result from the instruction, it is considered that the facts presented could violate what is established in Article 9 of the GDPR, which could imply the commission of an administrative infringement classified in Article 83.5 of the GDPR, which states the following:

“The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

“a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.”

For the purposes of prescription, the LOPDGDD establishes in its article 72.e):

“In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will be subject to a three-year prescription period, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

“e) The processing of personal data of the categories referred to in Article 9 of Regulation (EU) 2016/679, without any of the circumstances provided for in that provision and in Article 9 of this organic law.”

## 8.3. Infringement of Article 5.1.c of the GDPR.

As stated in Legal Basis V, in accordance with the evidence currently available, and without prejudice to what may result from the instruction, it is considered that the facts presented could violate what is established in Article 5.1.c) of the GDPR, which could imply the commission of an administrative infringement classified in Article 83.5 of the GDPR, which states the following:

“The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

“a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.”

For the purposes of prescription of the infringements, the LOPDGDD establishes in its article 72: “In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will be subject to a three-year prescription period, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.”

#### 8.4. Infringement of Article 8 of the GDPR.

As stated in Legal Basis VII, in accordance with the evidence currently available, and without prejudice to what may result from the instruction, it is considered that the facts presented could violate what is established in Article 8 of the GDPR, which could imply the commission of an administrative infringement classified in Article 83.4 of the GDPR, which states the following:

“The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and processor under Articles 8, 11, 25 to 39, 42, and 43.”

For the purposes of the prescription period, Article 73 “Infringements considered serious” of the LOPDGDD indicates:

“In accordance with what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and will be subject to a two-year prescription period, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data of a minor without obtaining their consent, when they are capable of doing so, or that of the holder of their parental authority or guardianship, in accordance with Article 8 of Regulation (EU) 2016/679.”

#### 8.5. Infringement of Article 13 of the GDPR.

As stated in Legal Basis VI, in accordance with the evidence currently available, and without prejudice to what may result from the instruction, it is considered that the facts presented could violate what is established in Article 13 of the GDPR, which could imply the commission of an administrative infringement classified in Article 83.5 of the GDPR, which states the following:

“In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will be subject to a three-year prescription period, which involve...

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a substantial violation of the articles mentioned therein and, in particular, the following:

b) the rights of the data subjects pursuant to Articles 12 to 22.”

For the purposes of the statute of limitations, Article 74 “Minor Offenses” of the LOPDGDD states:

“Minor offenses are considered to be those that are merely formal and will be subject to a one-year statute of limitations, as indicated in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679, and, in particular, the following:

a) The failure to comply with the principle of transparency of information or the right of information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679.

#### X Determination of Sanctions

Article 58.2 of the GDPR provides as follows: “Each supervisory authority shall have all of the following corrective powers indicated below:

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this section, depending on the circumstances of each particular case;”

The determination of the sanctions to be imposed in this case requires observing the provisions of Articles 83.1 and 2 of the GDPR, which respectively state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this article for the violations of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.”

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the

following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected data subjects and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular, whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have previously been ordered against the controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Within this section, the LOPDGDD provides in its Article 76, titled “Sanctions and Corrective Measures”:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
  - b) The connection of the infringer's activity with the processing of personal data.
  - c) The benefits obtained as a result of the commission of the infringement.
  - d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
  - e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
  - f) The impact on the rights of minors.
  - g) Having a data protection officer when not mandatory.
  - h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.
3. It shall be possible, additionally or alternatively, to adopt, where appropriate, the other corrective measures referred to in Article 83.2 of Regulation (EU) 2016/679.”

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For the assessment of the sanction that would be implemented in this initiation agreement, due to the alleged infringement of Article 35 of the GDPR, the following circumstances are considered:

- “The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation.” Since the processing of biometric data began on November 4, 2022, without the Data Protection Impact Assessment (EIPD) being conducted until February 15, 2023, it follows that for more than three months, the processing was carried out without identifying, evaluating, and assessing the risks to the rights and freedoms of individuals, without establishing and

implementing, as a consequence of the above, the appropriate measures to ensure their protection, in light of the purpose sought by the GDPR. This affected 700 subscribers who acquired the season ticket for the supporters' stand in the 2022/2023 season. (83.2.a GDPR). Furthermore, it should be noted that the failure to conduct an EIPD is substantially serious in this case, where conducting it would have shifted from a mandatory system to a voluntary one, also changing the legal basis and applicable exception.

- A serious lack of diligence is included (art 83.2.b GDPR), given that any processing that entails a high risk requires the prior conduct of an EIPD, especially if it may involve special categories of personal data, such as biometric data in this case, or subjects that deserve specific protection, such as children. In this regard, the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the infringer does not behave with the required diligence. In assessing the degree of diligence, the professionalism or lack thereof of the subject must be particularly weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be emphasized that rigor and exquisite care must be taken to comply with the legal provisions in this regard. The Supreme Court ruling of 5/06/1998 requires professionals in the sector "a duty to particularly know the applicable regulations," and similar terms are expressed in, among others, the Supreme Court rulings of 2/03/1999 and 17/09/1999, which state that due to their activity, they are accustomed to processing personal data and must be especially diligent and careful when performing operations with them and must always opt for the interpretation most favorable to safeguarding the fundamental right to data protection (as repeatedly stated by the National Court, among others in the ruling of 26/11/2008).

- The impact on one of the special categories of data, biometric data, whose need for protection is thus superior to that of other personal data, according to what was indicated by the Constitutional Court in ruling 76/2019, of 22/05/2019, appeal 1405/2019, which constitutes an aggravating factor, according to Article 83.2.g) of the GDPR "the categories of personal data affected by the infringement."

- The impact on the rights of minors (76.f) of the LOPDGDD). Given that according to the document provided as Annex VI, it is possible to process biometric data of minors under 18 years of age.

As a consequence, with the elements available, the sanction is quantified at

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50,000 euros, without prejudice to what results from the processing of the procedure.

For the assessment of the sanction that would be implemented in this initiation agreement, for the alleged infringement of Article 9 of the GDPR, the following circumstances are considered:

- "The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation," given that it is a periodic operation of processing personal data that affected 700 subscribers who acquired the season ticket for the animation stand during the 2022/2023 season from November 4, 2022, to February 15, 2023 (83.2.a GDPR).

- A lack of diligence is included, given that the implementation of the system was prepared and the impact of it was not anticipated, which would operate as an aggravating factor (art 83.2.b GDPR), in accordance with the doctrine of the Supreme Court previously referenced.

- The impact on the rights of minors (76.f) of the LOPDGDD. Given that according to the document provided as Annex VI, it is possible to process biometric data of minors under 18 years of age.

As a consequence, with the elements available, the sanction is quantified at 50,000 euros, without prejudice to what results from the processing of the procedure.

Regarding the violation of the principle of data minimization due to the alleged infringement of Article 5.1.c) of the GDPR, the following circumstances are considered:

- "The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation." The specific purpose of the processing of personal data in relation to the needs to be covered was not accurately considered, which constitutes the nature of the infringement and would open the scope of affected parties to any subscriber of the accused, estimating



that the purpose of the processing is a basic activity of the data controller, which constitutes an aggravating factor (83.2.a GDPR).

- A serious lack of diligence is included, given that it was documented in the DPIA of February 15, 2023, that there were other means for less intrusive processing, and the use of the solution was left to the users' discretion, and the impact of it was not anticipated, which would operate as an aggravating factor (art 83.2.b GDPR).
- The impact on one of the special categories of data, biometric data, whose need for protection is thus greater than that of other personal data, according to what was stated by the Constitutional Court in judgment 76/2019, of 05/22/2019, appeal 1405/2019, which constitutes an aggravating factor, according to Article 83.2.g) of the GDPR "the categories of personal data affected by the infringement."
- The impact on the rights of minors (76.f) of the LOPDGD. Given that according to the document provided as Annex VI, it is possible to process biometric data of minors under 18 years of age. As a consequence, with the elements available, the sanction is quantified at

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50,000 euros, without prejudice to what results from the processing of the procedure.

Regarding the violation of the principle of data minimization due to the alleged infringement of Article 8 of the GDPR, the following circumstances are considered:

- "The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation," given that the processing of biometric data carried out from February 15, 2023, required the provision of consent for the processing of biometric data without any provision for obtaining such consent. This implies a loss of control and disposition over their personal data. (83.2.a GDPR).
- A serious lack of diligence is included (art 83.2.b GDPR), since any processing that collects data from minors and requires consent must contain specific provisions for obtaining such consent either directly from them or from their legal representatives, depending on the age of the minor. It is considered that negligence occurs according to the doctrine of the Supreme Court previously referenced.
- The impact on one of the special categories of data, biometric data, whose need for protection is thus greater than that of other personal data, according to what was indicated by the Constitutional Court in judgment 76/2019, of 22/05/2019, appeal 1405/2019, which constitutes an aggravating factor, according to Article 83.2.g) of the GDPR "the categories of personal data affected by the infringement." As a consequence of the elements provided, the sanction is quantified at 25,000 euros, without prejudice to what results from the processing of the procedure.

Regarding the alleged infringement of Article 13 of the GDPR, the following circumstances are considered:

- "The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation." Since the data controller did not inform the affected parties in the terms of the GDPR from November 4, 2022, when the processing of biometric data began, nor from February 15, 2023, the date of the DPIA, nor in any case was this information adapted for minors, which affected 700 subscribers who acquired the season ticket for the animation stand in the 2022/2023 season. All of this implies a lack of information, a loss of disposition and control over personal data (83.2.a GDPR).
- A serious lack of diligence is included (art 83.2.b GDPR), given that it is necessary to inform the interested parties prior to the processing, especially when the information precedes the provision of consent.

In this regard, the Supreme Court has understood that there is imprudence whenever a legal duty of care is neglected, that is, when the offender does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must insist...

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to adhere to the rigor and exquisite care required to comply with the legal provisions in this regard. The Supreme Court ruling (STS) of 5/06/1998 requires professionals in the sector "a duty to particularly know the applicable regulations," and similar terms are expressed in, among others, the SSTs of 2/03/1999 and 17/09/1999. Due to their activities, they are accustomed to handling personal data and must be especially diligent and careful when performing operations with it, always opting for the interpretation most favorable to safeguarding the fundamental right to data protection (as repeatedly stated by the National Court, among others in the ruling of 26/11/2008).

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The impact on one of the special categories of data, biometric data, whose need for protection is thus superior to that of other personal data, according to what was indicated by the Constitutional Court in ruling 76/2019, dated 22/05/2019, appeal 1405/2019, which constitutes an aggravating factor, in accordance with Article 83.2.g) of the GDPR "the categories of personal data affected by the infringement."

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The impact on the rights of minors (76.f) of the LOPDGDD. Given that according to the document provided as Annex VI, it is possible to process biometric data of minors under 18 years of age. As a consequence, with the elements available, the sanction is quantified at 25,000 euros, without prejudice to what results from the processing of the procedure.

XI. Adoption of corrective measures.

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is noted that failure to comply with a possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to initiate an additional administrative sanctioning procedure.

XI. Provisional measures

Article 58.2 of the GDPR provides as follows:

"Each supervisory authority shall have all of the following corrective powers indicated below:

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d) to order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified timeframe;"

f) to impose a temporary or definitive limitation on the processing, including its prohibition; [...]"

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;"

The imposition of these measures is compatible with each other and with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is not recorded that BURGOS CF has ceased to use the biometric system for access to the stadium based on user consent, as it maintains it as a voluntary method of access to the cheering stand of its

stadium.

In particular, reference should be made to Article 69 of the LPACAP, which states:

“1. During the preliminary investigation actions or when a procedure for the exercise of the sanctioning power has been initiated, the Spanish Data Protection Agency may reasonably agree to the provisional measures necessary and proportionate to safeguard the fundamental right to data protection and, in particular, those provided for in Article 66.1 of Regulation (EU) 2016/679, the precautionary blocking of data and the immediate obligation to comply with the requested right.

2. In cases where the Spanish Data Protection Agency considers that the continuation of the processing of personal data, its communication or international transfer will result in a serious detriment to the right to personal data protection, it may order the data controllers or processors to block the data and cease its processing, and in the event of non-compliance with these mandates, proceed to immobilize them.”

Article 56 of the LPACAP, as applicable, states the following regarding provisional measures in paragraphs 1 and 3:

“1. Once the procedure has been initiated, the competent administrative body to resolve may adopt, ex officio or at the request of a party and in a reasoned manner, the provisional measures it deems appropriate to ensure the effectiveness of the resolution that may be issued, if there are sufficient elements of judgment for it, in accordance with the principles of proportionality, effectiveness, and least onerousness. (...)

3. In accordance with the provisions of the two preceding paragraphs, the following provisional measures may be agreed upon, under the terms provided in Law 1/2000, of 7/01, on Civil Procedure:

- a) Temporary suspension of activities.
- b) Provision of guarantees.
- c) Withdrawal or intervention of productive assets or temporary suspension of services for reasons of health, hygiene, or safety, the temporary closure of the establishment for these or other reasons provided in the applicable regulatory framework.
- d) Preventive seizure of assets, income, and fungible goods computable in cash by applying certain prices.
- e) The deposit, retention, or immobilization of movable property.
- f) The intervention and deposit of income obtained through an activity considered illicit and whose prohibition or cessation is sought.

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g) Deposit or consignment of the amounts claimed.

h) The withholding of income to be paid by Public Administrations.

i) Any other measures that, for the protection of the rights of the interested parties, are expressly provided for by law, or that are deemed necessary to ensure the effectiveness of the resolution.

4. Provisional measures that may cause harm that is difficult or impossible to repair to the interested parties or that involve a violation of rights protected by law shall not be adopted.

5. Provisional measures may be lifted or modified during the processing of the procedure, either ex officio or at the request of a party, by virtue of unforeseen circumstances or circumstances that could not be taken into account at the time of their adoption. In any case, they shall cease to have effect when the administrative resolution that concludes the corresponding procedure takes effect.

In the analyzed data processing, there is an undeniable high risk to the rights and freedoms of a large number of those affected, such as the loss of control and disposal of their personal data or the use of personal data that is not evidently necessary to access the stadium, which also includes minors. Alongside this, there are indications and established evidence that recommend not continuing with the aforementioned processing that involves special categories of personal data.

The continuation of the processing, of which there is evidence that it has not passed the triple test of proportionality and therefore has not passed the DPIA of February 15, 2023, could result in very serious and irreparable harm to the rights of those users. Therefore, the temporary suspension of the processing is the only measure that can be adopted to safeguard the Fundamental Right to Data Protection, being, moreover, the least harmful, burdensome, proportional, and effective, as well as the most proportional and effective for the accused.

From these premises and in order to guarantee the rights and freedoms of the affected parties, it is deemed appropriate to impose a provisional measure that avoids as soon as possible the continuation of the processing of personal data through the fingerprint recognition system for access to the El Plantío stadium of BURGOS CF, which must temporarily suspend its use.

This measure would not prevent the accused from continuing to control entry correctly and legally with the other systems they are using, nor would it result in the loss of service for fans, as they can continue to enter the stadium normally since it is a "complementary" or "alternative" system to fingerprint recognition, as the accused continuously asserts.

Consequently, in accordance with Article 83.2 of the GDPR and Article 76.3 of the LOPDGDD transcribed above, it is possible to impose through this Agreement to Initiate a sanctioning procedure the provisional measure of ordering, in accordance with the provisions of Article 69 of the LOPDGDD and Article 56 of the LPACAP, the temporary suspension of all processing of biometric personal data and in particular of those related to the fingerprint recognition system for access to the El Plantío stadium. Since the provisional suspension of the processing is considered necessary, proportional, and effective to guarantee the rights and freedoms at stake of the affected parties and of lesser burden for the accused.

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The provisional measure shall be carried out from the notification of this agreement to initiate the sanctioning procedure until its final resolution, in which it must be confirmed, modified, or lifted, without prejudice to the provisions of Article 56.5 of the LPACAP.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,  
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against BURGOS CLUB DE FÚTBOL, S.A.D. with NIF A09012428, for the following infringements of the GDPR:

- For the alleged infringement of Article 35, classified under Article 83.4 of the GDPR
- For the alleged infringement of Article 9 of the GDPR, classified under Article 83.5.a) of the GDPR.
- For the alleged infringement of Article 5.1.c, classified under Article 83.5.a) of the GDPR.
- For the alleged infringement of Article 8 of the GDPR, classified under Article 83.4.a) of the GDPR.
- For the alleged infringement of Article 13 of the GDPR, classified under Article 83.5.b) of the GDPR.

SECOND: TO ORDER as a provisional measure to BURGOS CLUB DE FÚTBOL, S.A.D. with NIF A09012428, in accordance with the provisions of Article 69 of the LOPDGDD and Article 56 of the LPACAP, the temporary suspension of all processing of personal data related to fingerprint detection for access to the El Plantío stadium. The provisional measure must be carried out within ten working days from the notification of this agreement to open the procedure, and shall remain in effect until its final resolution, in which it must be confirmed, modified, or lifted, without prejudice to the provisions of Article 56.5 of the LPACAP. To this end, it must justify to this Spanish Agency for Data Protection the compliance with this requirement.

THIRD: TO APPOINT A.A.A. as the instructor and B.B.B. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of 1/10, on the Legal Regime of the Public Sector (LRJSP).

FOURTH: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by

the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection.

FIFTH: THAT for the purposes provided in Article 64.2 b) of the LPCAPAP, the sanction that may correspond would be for each of the alleged infringements, without prejudice to what results from the instruction, would be:

- 50,000 euros, for the infringement of Article 35 of the GDPR.
- 50,000 euros, for the infringement of Article 9 of the GDPR.
- 50,000 euros, for the infringement of Article 5.1.c) of the GDPR.
- 25,000 euros, for the infringement of Article 8 of the GDPR.

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25,000 euros, for the infringement of Article 13 of the GDPR.

SIXTH: NOTIFY this agreement to BURGOS CLUB DE FÚTBOL, S.A.D. with NIF A09012428, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 160,000 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 160,000 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 120,000 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of either of the amounts indicated above, 160,000 euros or 120,000 euros, it must make the payment by depositing it into account no. IBAN: ES00-0000-0000-0000-0000-0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Furthermore, it must send the proof of payment to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

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Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Director of the Spanish Agency for Data Protection

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SECOND: On March 5, 2024, the respondent has proceeded to pay the sanction in the amount of 120,000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, and has submitted a written request on the same date for a resolution to terminate the procedure, acknowledging its responsibility, and expressly withdrawing from any action or administrative appeal against the sanction.

THIRD: In the aforementioned Initiation Agreement transcribed above, it was agreed: "ORDER as a provisional measure to BURGOS CLUB DE FÚTBOL, S.A.D. with NIF A09012428, in accordance with the provisions of Article 69 of the LOPDGDD and Article 56 of the LPACAP, the temporary suspension of all processing of personal data related to fingerprint detection for access to the El Plantío stadium. The provisional measure must be carried out within ten working days from the notification of this agreement to open the procedure and will remain in effect until its final resolution, at which point it must be confirmed, modified, or lifted, without prejudice to the provisions of Article 56.5 of the LPACAP. To this end, it must justify to this Spanish Agency for Data Protection the compliance with this requirement."

BURGOS CLUB DE FÚTBOL, S.A.D. has not yet demonstrated that it has executed this provisional suspension measure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions

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regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary nature, by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the imposition of the latter has been justified as

inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

### III

Elevation of provisional measure to definitive. Adoption of corrective measures.

Article 58.2 of the GDPR provides as follows:

“Each supervisory authority shall have all of the following corrective powers indicated below:

d) to order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time;”

f) to impose a temporary or definitive limitation on processing, including its prohibition; [...]”

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this section, depending on the circumstances of each particular case;”

Regarding the temporary or definitive limitation of processing, reference should be made to Article 69 of the LPACAP, which determines:

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“1. During the preliminary investigation proceedings or once a procedure for the exercise of the sanctioning power has been initiated, the Spanish Agency for Data Protection may, with justification, agree to the necessary and proportionate provisional measures to safeguard the fundamental right to data protection and, in particular, those provided for in Article 66.1 of Regulation (EU) 2016/679, the precautionary blocking of data, and the immediate obligation to comply with the requested right.

2. In cases where the Spanish Agency for Data Protection considers that the continuation of the processing of personal data, its communication, or international transfer will result in a serious detriment to the right to personal data protection, it may order the data controllers or processors to block the data and cease its processing, and, in the event of non-compliance with such orders, proceed to immobilize the data.”

Article 56 of the LPACAP states in its fifth section that:

“5. Provisional measures may be lifted or modified during the processing of the procedure, either ex officio or at the request of a party, by virtue of unforeseen circumstances or circumstances that could not be taken into account at the time of their adoption. In any case, they will cease to be in effect when the administrative resolution that concludes the corresponding procedure takes effect.”

In the present procedure, as it is not recorded that BURGOS CF had suspended the processing of data related to access to the animation stand of the stadium through fingerprint recognition—which was maintained as a voluntary access system for members who opted for it—the initiation agreement of the present procedure ordered the “temporary suspension of all processing of biometric personal data and, in particular, those related to the fingerprint recognition system for access to the El Plantío stadium,” since the provisional suspension of processing was deemed necessary, proportionate, and effective to guarantee the rights and freedoms at stake for the affected individuals and less burdensome for the accused.

According to what is provided in the initiation agreement of the present procedure, the provisional measure should have been adopted from the notification of the initiation agreement of the sanctioning

procedure until its final resolution, in which it should be confirmed, modified, or lifted, without prejudice to the provisions of Article 56.5 of the LPACAP.

As of the date of this resolution, BURGOS CF has acknowledged its responsibility and payment, requesting the termination of the procedure, without referring to the status of the biometric data processing in the animation stand of its stadium, so it is unknown whether this system has been provisionally suspended, as ordered in the initiation agreement of the sanctioning procedure, or if it has been definitively suspended.

That said, BURGOS CF has acknowledged its responsibility, and the infringements that were attributed in the initiation agreement have been duly established, making it necessary to impose on the responsible party the adoption of appropriate corrective measures to adjust its actions to data protection regulations, as was already indicated in the initiation agreement.

It is estimated that the same risks that motivated the provisional suspension or limitation of processing in the initiation agreement currently persist without doubt.

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since the continuation of the processing could result in a very serious and irreparable detriment to the rights and freedoms of users accessing the stadium using the implemented biometric system.

Given the circumstances, it is understood that the prohibition of processing, as a corrective measure provided for in Article 58.2 of the GDPR to the Spanish Agency for Data Protection, is the only measure that can be adopted to safeguard the Fundamental Right to Data Protection, being, moreover, the least harmful, burdensome, proportional, and effective, as well as the most proportional and effective for the accused.

Based on these premises and in order to guarantee the rights and freedoms of the affected parties, it is deemed appropriate to confirm the provisional suspension ordered in the initiation agreement, and to prohibit, as a corrective measure, the processing of personal data through the fingerprint recognition system for access to the El Plantío stadium of BURGOS CF, proceeding with the cessation of the processing.

This measure would not prevent the accused from continuing to control entry in an adequate and legal manner with the other systems they are using, nor would it result in fans losing the service, as entry to the stadium can continue normally since there is already an implanted "complementary" or "alternative" system to the fingerprint system, as the accused continuously asserts.

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of the sanctioning procedure processed under number PS/00483/2023 (EXP202213792), in accordance with the provisions of Article 85 of the LPACAP.

SECOND: To confirm the provisional measure imposed in the initiation agreement of the present sanctioning file, and to prohibit BURGOS CLUB DE FÚTBOL S.A.D, as a corrective measure, from any processing of personal data related to the fingerprint processing for access to the El Plantío stadium, certifying within ten business days before this Spanish Agency for Data Protection that it has proceeded with the cessation of its processing.

THIRD: TO NOTIFY this resolution to BURGOS CLUB DE FÚTBOL, S.A.D.

In accordance with the provisions of Article 50 of the LOPDGGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article



46.1 of the aforementioned Law.

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